

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #01	CCRB Case #: 201706835	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 08/13/2017 10:00 PM	Location of Incident: Chauncey Street between Howard Avenue and Saratoga Avenue	18 Mo. SOL 2/13/2019	Precinct: 81
Date/Time CV Reported Sun, 08/13/2017 11:30 PM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Thu, 08/17/2017 1:02 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean McDonnell	25832	955162	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Kevin Oconnor	4991	941095	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Sean McDonnell	Force: Police Officer Sean McDonnell used physical force against § 87(2)(b).	A . Complainant Uncooperative
B . POM Sean McDonnell	Discourtesy: Police Officer Sean McDonnell spoke discourteously to § 87(2)(b).	B . Complainant Uncooperative
C . POM Sean McDonnell	Abuse: Police Officer Sean McDonnell threatened § 87(2)(b) with the use of force.	C . Complainant Uncooperative

Case Summary

On August 13, 2017, § 87(2)(b) filed this complaint with IAB alleging that on that day, Police Officer Sean McDonnell, of the 81st Precinct, used physical force against him, spoke discourteously to him, and threatened him with the use of force. This case was forwarded to the CCRB on August 17, 2017 under log #17-31393.

On August 21, 2017, a please call voicemail was left for § 87(2)(b) and a first please call letter was sent. On August 21, 2017, § 87(2)(b) left a voicemail for the undersigned requesting a callback. On August 22, 2017, the undersigned called § 87(2)(b) who provided a phone statement and scheduled an appointment for August 24, 2017. On August 22, 2017, § 87(2)(b) received a text message reminder of his upcoming appointment. § 87(2)(b) missed his scheduled appointment on August 24, 2017 without calling ahead to cancel or reschedule. On August 24, 2017, a please call voicemail was left for § 87(2)(b) and a missed appointment letter was emailed and mailed to him. On August 29, 2017 and September 5, 2017, please call voicemails were left for § 87(2)(b). On September 8, 2017, a final letter was emailed and mailed to him. On September 14, 2017, a voicemail was left for § 87(2)(b) stating that if he did not contact the undersigned by the end of day on September 15, 2017, his case may be closed without a full investigation. On September 14, 2017, the undersigned received a text-to-landline from § 87(2)(b) stating, "Can't talk now. Call me later." Later that day, the undersigned called § 87(2)(b) again and left a please call message reiterating that if he does not call by the given deadline, his case may be closed without a full investigation. § 87(2)(b) did not call the undersigned by the given deadline and as of the date of this report, has not attempted to reach out to the undersigned. None of the letters sent to § 87(2)(b) were returned by the US Postal Service. None of the emails sent to § 87(2)(b) failed to deliver. A DOC search on September 20, 2017 revealed that § 87(2)(b) is not currently incarcerated. As § 87(2)(b) missed one scheduled appointment with the CCRB and has not been responsive to the undersigned's attempts to reschedule him, it is recommended that this case be closed as **complainant uncooperative**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

